

alleges she was a purely clerical administrative assistant and receptionist. The FAC does not allege that she taught Christianity or led prayer or worship. At most, it states that she may have gone beyond her assigned duties by 'volunteering' for church events, outreach programs, and ministry projects. Defendant reads the FAC to reflect that Plaintiff consistently went beyond her assigned duties and argues that these allegations establish ministerial functions.

Given the it is a fact-driven inquiry, whether Plaintiff's duties were functionally equivalent to a minister's is a factual question not resolvable on demurrer. (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 113-114.) A demurrer tests legal sufficiency only; it is not the procedure for determining the truth of disputed facts. The hearing may not be turned into a contested evidentiary hearing. (*Ibid.*)

Drawing all reasonable inferences in Plaintiff's favor, the FAC alleges that she performed receptionist and administrative-assistant duties and that her participation in church events was voluntary and beyond her assigned duties. Whether those duties were in fact ministerial in nature is a question that requires factual development and cannot be resolved by accepting the allegations as true on demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVME2604863	PINTADO VS DCH TEMECULA MOTORS LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted. Case is stayed pending arbitration. Plaintiff's Evidentiary Objections sustained in part/overruled in part. Defendant's objections are overruled. Leave to conduct limited discovery is denied.

Evidentiary Objections - Plaintiff objects to the following portions of the Declaration of Michelle Rummer submitted in support of Defendant's motion: Objection No. 1 (¶ 11) – Objects to the statement that Plaintiff does not dispute that he signed the Arbitration Agreement on September 16, 2025, as vague and ambiguous, lack of foundation and personal knowledge, and misstatement of the date. Sustained. Objection No. 2 (¶ 11) – Objects to the original declaration's misstatement of the date as September 16, 2025, when exhibits show September 16, 2024. Overruled as moot (corrected declaration filed). Objection No. 3 (¶ 13) – Objects that the statement no one, inclusive of Plaintiff, has contested the Arbitration Agreement is vague, ambiguous, and misleading. Sustained. Objection No. 4 (¶ 13) – Objects that the statement Plaintiff did not have any questions regarding the Arbitration Agreement lacks foundation and personal knowledge. Sustained. Objection No. 5 (¶ 13) – Objects that the statement Plaintiff provided his e-signature on the document on July 27, 2024, misstates the contents of the exhibits. Overruled as moot (corrected declaration filed).

Defendant objects to paragraphs 3–8, 14–15 of the Declaration of Mitchell J. Murray on relevance and/or hearsay grounds. Objection Nos. 1–6 (¶¶ 3–8, Exs. 1–3) – Objects to evidence regarding CPR donor lists, CPR board composition, and the at-will employment agreement as irrelevant. Overruled. Objection No. 7 (¶¶ 9–14, Exs. 4–7) – Objects to the Olasaba case materials as irrelevant and hearsay. Overruled. Objection

No. 8 (¶ 15) – Objects to warranty-fraud allegations as speculative and legal conclusion. Overruled.

Legal Standard - Upon the petition of a party to an agreement to arbitrate, the Court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC Rule 3.1330; *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218–19.) The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 972.)

There is a strong public policy in favor of arbitration agreements. (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 741.) “California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general.” (*Engalla, supra*, 15 Cal.4th 951, 971–72.) Given the policy favoring arbitration, “doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration.” (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323; *see also Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 9.)

Federal Arbitration Act- The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes the enforcement of arbitration clauses unless there are legal or equitable grounds to revoke the contract. (9 U.S.C. § 2.) The FAA reflects a strong federal policy favoring arbitration. To promote uniformity in determining the arbitrability of disputes under the Act, conflicting state laws are preempted by the Supremacy Clause. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The burden is on the party claiming that the contract involves interstate commerce and that the FAA preempts state law to prove that the underlying transaction affects interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.)

Here, the parties do not dispute that the FAA applies to the Arbitration Agreement at issue. Defendant is owned and operated by Lithia (Rummer Decl. ¶ 5), and Lithia is incorporated under the laws of the State of Oregon, and Defendant’s headquarters, including its principal, executive, and administrative offices, and principal place of

business are in Medford, Oregon. (*Id.* at ¶ 6.) The agreement explicitly provides that it “shall be governed under the Federal Arbitration Act, 9 U.S.C. §§ 1 et seq.” (*Id.* at ¶ 11, Ex. A at 1; see also *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 [holding that when an arbitration agreement explicitly states it is governed by the FAA, the FAA applies, and state law cannot interfere with its enforcement].) Therefore, the FAA applies in this case.

Existence of Arbitration Agreement -Before granting a petition to compel arbitration, the Court must determine whether a valid arbitration agreement exists. (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219.) The moving party bears the burden of presenting “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal v. Great W. Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) This burden can be met by attaching a copy of the arbitration agreement bearing the opposing party’s signature or by setting forth its provisions in the motion. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44; *Condee, supra*, 88 Cal.App.4th at 219.) Moreover, under California law, “no dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement.” (*Howard v. Goldbloom* (2018) 30 Cal.App.5th 659, 663 [quoting *Titolo v. Cano* (2007) 157 Cal.App.4th 310, 317].)

Here, Defendant has met its initial burden of proving the existence of a valid arbitration agreement. On September 16, 2024, Plaintiff electronically signed the Arbitration Agreement. (Rummer Decl. ¶ 11, Ex. A.) The Adobe Sign audit trail confirms the signature. (*Id.*, Ex. B.) The agreement provides that “any dispute, controversy, or claim arising out of or related to my employment, including regarding the terms of my own pay plan, termination from employment, or any other association I have with the Company shall be finally resolved by binding arbitration in accordance with the then-current International Institute for Conflict Prevention and Resolution (‘CPR’) Administered Employment Arbitration Rules (the ‘Rules’)” (the “CPR Rules”). (*Id.*, Ex. A at 1.) Plaintiff’s claims—for whistleblower retaliation, wrongful termination, and wage-and-hour violations—all arise out of his employment with Defendant, and therefore fall within the broad scope of the arbitration provision.

Based on the foregoing, Defendant has satisfied its initial burden of demonstrating the existence of a written arbitration agreement and that Plaintiff’s claims fall within its scope. Before reaching Plaintiff’s unconscionability challenges, the Court must first determine whether it, or the arbitrator, has the authority to decide them.

Delegation of Arbitrability -Courts presumptively decide the two “gateway” questions on a petition to compel arbitration: whether an arbitration agreement exists, and whether the dispute falls within its scope. (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 83–84.) The parties may delegate those gateway questions to the arbitrator, but only where they “clearly and unmistakably” so provide; absent such evidence, the court decides arbitrability. (*AT&T Techs., Inc. v. Commc’ns Workers of Am.* (1986) 475 U.S. 643, 649; *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943–44; *Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 586 U.S. 63, 68.)

This is a “heightened standard” because “the question of who would decide the gateway questions like the unconscionability of an arbitration provision is not one that the parties would likely focus upon in contracting, and the default expectancy is that the court

would decide the matter.” (*Beco v. Fast Auto Loans, Inc.* (2022) 86 Cal.App.5th 292, 302–03 [internal quotation marks & citation omitted].) A contract’s “silence or ambiguity” cannot satisfy the clear-and-unmistakable standard. (*Ajamian v. CantorCO2e. L.P.* (2012) 203 Cal.App.4th 771, 782.)

Incorporation of arbitration rules that empower the arbitrator to decide arbitrability “may” constitute clear and unmistakable evidence of delegation. (*Aanderud v. Sup. Ct.* (2017) 13 Cal.App.5th 880, 888.) In the employment context, however, California courts have held that mere incorporation is insufficient, particularly where the rules are not attached and the employee has no ready means to locate them. (*Ajamian, supra*, 203 Cal.App.4th at 790; *Beco, supra*, 86 Cal.App.5th at 304–06.) *Aanderud* itself found delegation only where the agreement expressly stated the parties would arbitrate “the interpretation, validity, or enforceability of this Agreement,” together with rule incorporation. (*Aanderud, supra*, 13 Cal.App.5th at 892–93.)

Conflicting provisions about who decides arbitrability defeat clear and unmistakable delegation. (*Dennison v. Rosland Capital LLC* (2020) 47 Cal.App.5th 204, 209–10; *Ajamian, supra*, 203 Cal.App.4th at 793.) And any delegation clause, if it exists, must be specifically challenged; but that requirement applies only where an express delegation provision exists in the first place. (*Rent-A-Center v. Jackson* (2010) 561 U.S. 63, 71–72; *Ajamian, supra*, 203 Cal.App.4th at 794.)

Defendant contends that the parties delegated gateway issues to the arbitrator because the Arbitration Agreement provides that any arbitration shall be finally resolved pursuant to the then-current CPR Rules. (Rummer Decl. ¶ 11, Ex. A at 1.) Defendant argues that “[t]he express incorporation of the CPR Rules into the Arbitration Agreement constitutes the ‘clear and unmistakable’ agreement of the parties to delegate all questions of arbitrability to the arbitrator,” relying on CPR Rule 8.1, which states that “[t]he arbitrator, and not a court, shall have the power to hear and determine challenges to the arbitrator’s jurisdiction, including any objections with respect to the existence, validity or scope of the arbitration agreement.” (Def.’s Mot. 13:1–3; Roth Decl. ¶ 3, Ex. 2.) Defendant argues that Plaintiff has not specifically challenged CPR Rule 8, so the Court’s inquiry ends there.

Here, the Arbitration Agreement does not contain clear and unmistakable evidence that the parties agreed to delegate threshold arbitrability questions to the arbitrator for three reasons. First, the Arbitration Agreement’s express court carveout creates fatal ambiguity. It provides that “[a]ny question or dispute concerning the scope or validity of this paragraph shall be decided by a court of competent jurisdiction and not the arbitrator,” in the paragraph addressing class and representative claims. (Rummer Decl. ¶ 11, Ex. A at 2.) The agreement thus cannot simultaneously delegate all gateway questions to the arbitrator through the CPR Rules and reserve certain scope-and-validity questions for the court. Such conflicting provisions defeat clear and unmistakable delegation, and the resulting ambiguity precludes a finding of clear and unmistakable evidence. (*Dennison, supra*, 47 Cal.App.5th at 209–10; *Ajamian, supra*, 203 Cal.App.4th at 792.)

Second, the agreement contains no express delegation clause. Unlike the agreement in *Aanderud*, which explicitly delegated the interpretation, validity, or enforceability of the

agreement, the Arbitration Agreement in this case states only that disputes shall be finally resolved by binding arbitration in accordance with the CPR Rules. (Rummer Decl. ¶ 11, Ex. A.) The signed text does not state that the arbitrator shall decide enforceability or unconscionability challenges.

Third, mere incorporation of the CPR Rules does not supply clear and unmistakable delegation in this employment onboarding posture. Under *Beco* and *Ajamian*, the reference to institutional rules does not adequately signal to an employee that she is giving up her usual right to have the court decide whether the arbitration provision is enforceable. (*Ajamian, supra*, 203 Cal.App.4th at 790; see *Beco, supra*, 86 Cal.App.5th at 304–06.) The CPR Rules were not attached to the signing packet, and the audit trail reflects that the agreement was viewed and signed in less than one minute. (Rummer Decl. ¶ 11, Ex. B.)

Moreover, CPR’s own model employment arbitration clause provides drafters with an optional sentence expressly assigning arbitrability to “the arbitral tribunal, and not the court” (or alternatively, to “the court, and not the arbitral tribunal”). (Roth Decl. ¶ 4, Ex. 2.) Defendant incorporated the CPR rules but did not include either optional sentence in the signed agreement. Because the drafter of an employment arbitration agreement who “want[s] the issue to be decided . . . by the arbitrator would most likely spell out [that] unusual intention in the arbitration provision” (*Beco, supra*, 86 Cal.App.5th at 304), Defendant’s decision not to adopt CPR’s express delegation language further confirms that rule incorporation alone was not intended to delegate arbitrability. Because no valid delegation clause exists, the Court retains jurisdiction to decide the enforceability of the Arbitration Agreement, including Plaintiff’s unconscionability challenges.

Unconscionability - Plaintiff challenges the agreement on unconscionability grounds. Under California law, unconscionability requires both a procedural and substantive element, though they need not be present in equal measure. (*Mercuro v. Sup. Ct.* (2002) 96 Cal.App.4th 167, 174; *Stirlen v. Supercuts, Inc.* (1997) 51 Cal.App.4th 1519, 1533.)

Procedural Unconscionability – “Procedural unconscionability pertains to the making of the agreement; it focuses on the oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (*Ajamian, supra*, 203 Cal.App.4th at 795.)

Contract of Adhesion - Plaintiff first argues that the Arbitration Agreement is adhesive. Even assuming it is, “adhesion establishes only a ‘low’ degree of procedural unconscionability” (*Davis v. Kozak* (2020) 53 Cal.App.5th 897, 907, disapproved on another ground in *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478), and enforcement is precluded only where there is additional evidence of “surprise, oppression, deception, or sharp practice” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246). Plaintiff completed the Arbitration Agreement, along with the employee handbook and offer letter, through Defendant’s electronic onboarding portal (Rummer Decl. ¶ 11), with no evidence of surprise, coercion, or unfair tactics. Adhesion alone supports only a low degree of procedural unconscionability.

Presentation, Access, and Opportunity to Review - Plaintiff's remaining procedural challenges—that Defendant failed to explain the Arbitration Agreement's significance, failed to provide a copy or the applicable arbitration rules, and failed to provide sufficient time to review—collectively add minimal procedural unconscionability. The record shows Plaintiff accessed and signed the agreement electronically through the Workday portal on his own time, and the signed agreement was saved and remained accessible to him through that portal. (Rummer Decl. ¶¶ 12–13.) Plaintiff has not alleged that he requested clarification, additional time, or a copy of the CPR Rules, or that any such request was denied. Nor has he identified any specific constraint on his ability to review the agreement. On balance, procedural unconscionability is low, arising primarily from the agreement's adhesive nature.

Substantive Unconscionability - Plaintiff challenges two provisions as substantively unconscionable: (1) the PAGA and representative-action waiver and (2) the Rule 68 offer-of-compromise provision.

PAGA Waiver - The Arbitration Agreement contains two overlapping waiver provisions. Page 1 provides that, “to the maximum extent permitted by applicable law, any claim brought by me against the Company shall be brought in my individual capacity and not as a plaintiff, class, or representative member in any purported class or representative proceeding, including under the California Private Attorney General Act (‘PAGA’) or similar law.” (Rummer Decl. ¶ 11, Ex. A.) Page 2 further provides that “I and the Company agree to waive any right to bring or participate in any class, collective, PAGA, or other representative action.” (*Id.*) Plaintiff argues these provisions are substantively unconscionable under *Hasty v. American Automobile Association of Northern California* (2023) 98 Cal.App.5th 1041, because they purport to waive nonwaivable representative-PAGA rights, and that the Page 1 “to the maximum extent permitted by applicable law” qualifier does not cure the defect.

The Page 2 waiver, standing alone and unqualified, purports to waive representative PAGA claims wholesale. That is substantively unconscionable under *Hasty*, and the Page 1 savings qualifier does not cure the defect. (*Hasty, supra*, 98 Cal.App.5th at 1062–63.) That Plaintiff has not currently pled a PAGA claim is not an answer, because unconscionability is judged at contract formation, not in hindsight. (*Id.* at 1063.)

The defect does not, however, defeat arbitration. Under *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, an unenforceable representative-PAGA waiver is severable from the individual claim, which remains arbitrable. And under *Adolph v. Uber Techs., Inc.* (2023) 14 Cal.5th 1104, the employee retains standing to pursue any non-individual (representative) PAGA claim in court once the individual claim is compelled to arbitration. The agreement's severance clause—providing that “[s]hould any term or provision, or portion thereof, be declared void or unenforceable, it shall be severed, and the remainder of this Agreement shall be enforced” (Rummer Decl. ¶ 11, Ex. A)—reinforces that result and is entitled to weight as “an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez, supra*, 16 Cal.5th at 517.) The representative action waiver should therefore be severed to the extent it purports to waive non-individual representative PAGA relief, and Plaintiff's individual claims should proceed to arbitration.

Rule 68 Provision - The Arbitration Agreement provides: “Offers of compromise shall be served on the other party at least 14 days before the arbitration hearing commences and shall not be disclosed to the arbitrator until after the arbitral award is issued. The arbitrator shall give the same force and effect to offers of compromise as an offer of judgment under Rule 68 of the Federal Rules of Civil Procedure.” (Rummer Decl. ¶ 11, Ex. A.) Plaintiff argues this provision is substantively unconscionable because, under *Delta Air Lines, Inc. v. August* (1981) 450 U.S. 346, 352, Rule 68 is a one-sided federal cost-shifting device—only a defendant may serve an offer, and only a plaintiff bears post-offer cost consequences—that exposes him to costs he would not face in court. Plaintiff further argues that, under *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 99–100, 115, a prevailing employer may not recover costs from an unsuccessful FEHA plaintiff, so importing Rule 68 into arbitration circumvents that statutory protection.

As Defendant argues, however, the provision is textually mutual. It applies to “offers of compromise” served by either party, not just Defendant, and its cost-shifting effect operates against whichever party rejects the offer and later obtains a less favorable result. The Ninth Circuit recently rejected the same unconscionability challenge to a materially identical clause, holding that a provision giving arbitration offers the same force and effect as Rule 68 was facially mutual and does not unconscionably shift monetary costs. (*Tyler v. Tailored Shared Servs., LLC* (9th Cir. 2025) 2025 WL 2938692, at 2 [nonpub. mem.])¹ The result is reinforced by CCP § 998, which expressly authorizes offers of compromise in arbitration and imposes cost consequences bilaterally against whichever side rejects a more favorable offer.

Delta Air Lines does not compel a different result. That case addressed how Rule 68 operates in federal court by its own force, where only defendants may serve offers. It did not address a private agreement that imports Rule 68’s cost-allocation principle bilaterally into arbitration, which is what the Arbitration Agreement does here. Plaintiff’s reliance on *Williams* is likewise misplaced, as Plaintiff has pled no FEHA claim, and *Williams*’s asymmetric cost rule is FEHA-specific. The offer of compromise provision is therefore not substantively unconscionable.

Discovery - Plaintiff argues that the Arbitration Agreement fails to guarantee the minimum discovery required under *Armendariz*. The agreement provides that the arbitrator will authorize such discovery as “reasonably necessary” for each party to prepare and present its claims and defenses. (Rummer Decl. ¶ 11, Ex. A.) *Armendariz* requires “adequate” discovery, not unlimited discovery. (*Armendariz, supra*, 24 Cal.4th at 105–06.) An arbitration provision that delegates discovery scope to the arbitrator under a “reasonably necessary” standard, without express numerical limits, satisfies *Armendariz*. (See *Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983–84 [“We assume that the arbitrator will operate in a reasonable manner in conformity with the law.”].) The discovery provision is not substantively unconscionable.

At-will/Unilateral Modification - Plaintiff argues that under Civ. Code § 1642, the Arbitration Agreement must be read together with the at-will employment agreement executed as part of the same onboarding process, which provides that “all terms and

¹ “Although not binding, unpublished federal district court cases are citable as persuasive authority.” (*Aleman v. Airtouch Cellular* (2012) 209 Cal.App.4th 556, 576, fn. 8.)

conditions of [Plaintiff's] employment may be changed or withdrawn at Company's unrestricted option at any time, with or without good cause." (Murray Decl. ¶ 8, Ex. 3.) Read together, Plaintiff contends, the agreements reserve to Defendant unilateral control over the arbitration terms, rendering the Arbitration Agreement substantively unconscionable at the time of formation under *Ramirez*.

As Defendant argues, however, a unilateral modification provision does not render the arbitration agreement illusory or unconscionable because it is limited by the implied covenant of good faith and fair dealing. (See *24 Hour Fitness, Inc. v. Sup. Ct.* (1998) 66 Cal.App.4th 1199, 1214; *Peleg v. Neiman Marcus Grp., Inc.* (2012) 204 Cal.App.4th 1425, 1465.) Even assuming the employment agreement and Arbitration Agreement are read together under section 1642, California courts have consistently held that a general "terms and conditions" modification provision does not render an arbitration agreement substantively unconscionable, because the implied covenant of good faith and fair dealing limits the modifying party's discretion. (*24 Hour Fitness, supra*, 66 Cal.App.4th at 1214; *Peleg, supra*, 204 Cal.App.4th at 1465.) The at-will employment agreement's modification language does not, on this record, render the Arbitration Agreement substantively unconscionable.

Ruling - Based on the above, the Arbitration Agreement demonstrates low procedural unconscionability (adhesive nature) and minimal substantive unconscionability. The combination does not reach the level necessary to render the agreement unenforceable. Plaintiff has not met his burden to establish unconscionability as a defense to arbitration.

Leave to Conduct Limited Discovery

Plaintiff requests limited discovery into whether Defendant, Lithia, DCH, Littler, or counsel has any "membership, donor, sponsorship, committee, repeat-user, or other institutional relationship with CPR" before any order compelling arbitration. (Pl.'s Opp. 15:7–8.) The request is denied. Plaintiff cites no authority requiring a court to permit discovery into an arbitral forum's institutional relationships before compelling arbitration, and Plaintiff has made no record-specific showing of actual partiality by the arbitrator who will be assigned to this case. Speculation about an arbitral provider's institutional affiliations, without any showing of bias affecting this proceeding, does not warrant pre-arbitration discovery.

3.

CASE #	CASE NAME	HEARING NAME
CVME2604885	DELACRUZ VS NISSAN NORTH AMERICA, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Motion is Granted, Plaintiff granted 30 days leave to amend. Defendant now moves to strike portions of the Complaint concerning Plaintiff's claims for entitlement to civil penalty under the Song-Beverly Act (the "Act"). Defendant contends Plaintiff does not, and cannot, allege any facts showing Plaintiff complied with the prelitigation dispute-resolution procedures required under Code of Civil Procedure section 871.24, subdivision (a), required to pursue civil penalties. Defendant points out the Complaint fails to allege whether Plaintiff maintained possession of the Vehicle at